

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Luxama	Team: Team # 5	CCRB Case #: 201014879	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 10/15/2010 12:01 AM	Location of Incident: In front of 396 McDonough Street	18 Mo. SOL 4/15/2012	Precinct: 81
Date/Time CV Reported Fri, 10/29/2010 11:46 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/29/2010 11:46 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Favio Quizhpi	08682	948119	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Favio Quizhpi	Abuse: PO Favio Quizhpi stopped § 87(2)(b)	[REDACTED]
B . POM Favio Quizhpi	Force: PO Favio Quizhpi used physical force against § 87(2)(b)	[REDACTED]
C . POM Favio Quizhpi	Abuse: PO Favio Quizhpi damaged § 87(2)(b) s property.	[REDACTED]

Case Summary

On October 29, 2010, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board.

On October 15, 2010, at approximately 12:01 a.m., § 87(2)(b) and his girlfriend were seated inside their parked car in front of 396 McDonough Street in Brooklyn. § 87(2)(b) did not want to provide his girlfriend's name. PO Favio Quizhpi, who § 87(2)(b) identified by his shield number, approached the car and stated that they were blocking the street. § 87(2)(b) explained that he was pulling into their garage. PO Quizhpi then walked to the passenger side of the vehicle where § 87(2)(b) was seated and used his flashlight to view into the car. § 87(2)(b) had the front passenger door open. PO Quizhpi reached for a bag that was between § 87(2)(b)'s legs, but released the bag and told § 87(2)(b) and his girlfriend to exit the vehicle. § 87(2)(b) attempted to exit the vehicle, but PO Quizhpi grabbed his arm and neck in an effort to pull him out the vehicle. § 87(2)(b)'s shirt was torn as a result of this force. § 87(2)(b) screamed that there were cameras at the location so PO Quizhpi released him. PO Quizhpi eventually left the location.

From November 1, 2010 through December 1, 2010, five telephone calls with messages were made to § 87(2)(b). On November 1, 2010, and November 8, 2010, letters were sent to § 87(2)(b). None of these letters were returned by the U.S. Postal Service. On November 8, 2010, § 87(2)(b) scheduled an appointment for November 17, 2010. On November 17, 2010, § 87(2)(b) left the investigator a message stating that he could not appear for his interview. On November 23, 2010, § 87(2)(b) scheduled an appointment for November 29, 2010. On November 29, 2010, § 87(2)(b) appeared for his interview with his girlfriend. However, after his girlfriend learned about the investigative process, she decided that she did not want to provide a statement. § 87(2)(b) conferred with his girlfriend and then decided he also did not want to provide a statement. After being presented with a withdraw letter, § 87(2)(b) decided that he would appear on another day that he could not specify. § 87(2)(b) agreed to call the investigator to schedule an interview. As of December 2, 2010, § 87(2)(b) has not contacted the investigator. § 87(2)(g)

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date